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WISCONSIN COURT OF APPEALS, DISTRICT IV
CASE NO. _____

WISCONSIN DEMOCRACY CAMPAIGN, PAUL GAGLIARDI, *individually as a relator on behalf of the State of Wisconsin*, and DEBORAH PATEL, *individually as a relator on behalf of the State of Wisconsin*,

Plaintiffs-Petitioners,

v.

CIRCUIT COURT OF DANE COUNTY,

Respondent,

and

ELON MUSK, AMERICA PAC, and UNITED STATES OF AMERICA INC.,

Interested Parties,

EMERGENCY PETITION FOR SUPERVISORY WRIT

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INTRODUCTION

Plaintiffs-Petitioners Wisconsin Democracy Campaign, Paul Galiardi, and Deborah Patel respectfully request a supervisory writ directing the Circuit Court for Dane County to vacate its order transferring venue to Brown County. The error below is straightforward. Under both express statutory command and binding precedent, a motion to change venue fails where the movant fails to provide proof, unless the court holds a hearing. Wis. Stat. § 801.53; *Stelling by Ryberg v. Middlesex Ins. Co.*, 2023 WI App 10, ¶56, 406 Wis. 2d 197, 986 N.W.2d 354. But here, neither happened. Instead, without any proof and without a hearing, the Circuit Court granted a motion to change venue, enabling and even rewarding Defendants' blatant forum shopping, and prolonging an important and time-sensitive case that has already been delayed too long. (App. 254–57, 259)

Plaintiffs have a strong interest in seeing this case adjudicated quickly in the proper venue. There are numerous opportunities for Defendants, or others emboldened by their behavior, to interfere in upcoming Wisconsin elections. The next Wisconsin Supreme Court election is now less than nine weeks away. Every seat in the Wisconsin Assembly and more than one-half of the Wisconsin Senate seats are up for election in November. Likewise, all eight congressional seats will be on the November ballot, as well as the offices of Governor, Lieutenant Governor, Attorney General, Secretary of State, and Treasurer. Transferring the case now, without the proof or process mandated by statute, and to a new venue with less judicial capacity and less familiarity with the claims and the nature of the case will cause only

further delay.[1] Emergency relief is therefore warranted in these circumstances.

Accordingly, and because Plaintiffs satisfy the other requirements as set forth below, this Court should issue a supervisory writ and return this case to the Dane County Circuit Court.

STATEMENT OF THE ISSUE

"Motions under ss. 801.51 and 801.52 shall be determined on the basis of proofs submitted by the parties unless the court orders a hearing or oral argument." Wis. Stat. § 801.53. Defendants moved to transfer under Wis. Stat. § 801.52, but did not submit any proofs in support of their motion, and the Court below did not order or hold a hearing or argument. Nevertheless, the Court granted Defendants' motion, based in substantial part on conjecture, and transferred this case to Brown County. The issue presented in this petition is whether it was error for the Circuit Court to transfer the case to Brown County in these circumstances.

STATEMENT OF FACTS

A. Defendants implemented a statewide scheme that harmed Dane County residents.

In the days before the 2025 Wisconsin Supreme Court election, Defendants implemented a brazen scheme all across the State of Wisconsin to bribe voters in an effort to influence the election. To start, Defendants offered $100 to any registered Wisconsin voter anywhere in the State who signed a "Petition in Opposition to Activist Judges," and

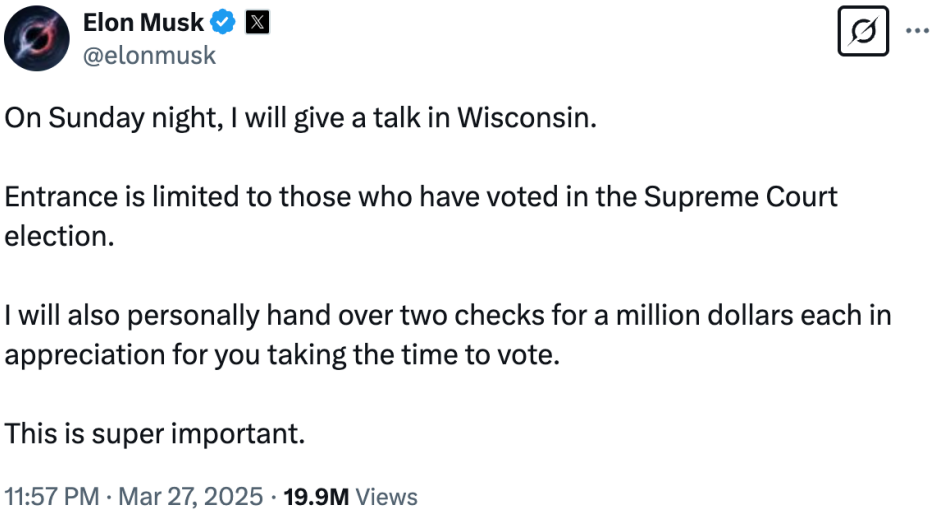
[1] Though this case was transferred to Brown County on January 22, 2026 (App. 260–62), as of filing this Petition, there is no assigned judge in Brown County. The randomly assigned judge docketed a notice of his recusal on January 28 (App. 263–65) but remains listed as the "Responsible official" on the electronic docket.

promised an additional $100 reward for every successful referral to an additional Wisconsin registered voter who then signed the petition. (App. 15–16). Defendants widely promoted this petition to Wisconsonites, including in Dane County. (App. 10, 15-16) They also made payments to Wisconsin voters who signed the petition. (App. 10, 15–17) The Circuit Court recognized that "it is reasonable to believe the petition was advertised in, and likely signed by residents of Dane County and payments [were] made to those residents." (App. 255)

Defendants then announced and promoted a "X Live" conversation with Judge Brad Schimel—Elon Musk's preferred candidate—and Republican Senator Ron Johnson. (App. 17–21). Defendants also promoted this X Live conversation throughout Wisconsin, including to Dane County residents. (App. 17–20) Defendants' outreach included sending text messages about the event to Petition signers, who included Dane County residents. (App. 17–18)

During that event, Musk repeatedly endorsed Judge Schimel, telling listeners, "I'm really urging—please anyone, if you have any friends, family in Wisconsin, send them a note and ask them to vote early for, um, Justice [*sic*] Schimel, and um, because this, actually, this election is gonna affect everyone in the United States." (App. 20–21)

On March 27, Musk used X to announce an event in Wisconsin (the Event).



(App. 24) Musk later deleted this post. (App. 24) He then posted again, in a purported effort to "clarify a previous post." (App. 24–25) The second post stated that "entrance is limited to those who have signed the petition in opposition to activist judges" and "I will also hand over checks for a million dollars to 2 people to be spokesmen for the petition." (App. 25)

Before the Event, America PAC posted a registration form online titled "Town Hall with Elon Musk." (App. 25) Members of the public could not attend the event unless they completed the registration form, which *required* prospective attendees to indicate how they planned to vote. (App. 25–26) Thus, exercising the right to vote became an essential precondition to winning. At the event, which was in Green Bay but promoted and open to all Wisconsin voters, Musk handed out two million-dollar checks to Wisconsin voters. (App. 26–27)

Although Defendants did not submit any evidence in the Circuit Court, Plaintiffs did. Plaintiffs submitted data showing that Dane County had a substantially higher voter turnout percentage in the 2024 presidential election then the statewide average. (App. 181–200)

B. Plaintiffs, including a Dane County resident, filed this lawsuit.

In June 2025, the non-profit organization Wisconsin Democracy Campaign (WDC), along with two registered Wisconsin voters, filed this lawsuit. WDC is headquartered in Dane County. (App. 12) WDC is a non-partisan watchdog organization whose mission is to advocate for and educate around transparency and accountability in government to create a just democracy. (App. 12–13) Plaintiffs' complaint asserts claims for violation of Wisconsin's election bribery statute (Counts 1–2; App. 36–39), lottery statute (Count 3; App. 40–42), for conspiracy (Count 4; App. 42–43), and a public nuisance (Count 5; App. 43–45).

As Plaintiffs allege in the complaint, venue is proper in Dane County because it is one of the counties in which the claims arose. (App. 14) The Circuit Court had jurisdiction over the suit pursuant to Article VII, Section 8 of the Wisconsin Constitution and Wis. Stat. § 753.03, as well as under Wis. Stat. § 801.05(1)(d), (3), and (4). (App. 14)

C. The Circuit Court granted Plaintiffs' motion for leave to proceed on behalf of the State.

Alongside the initial filings, Plaintiffs Gagliardi and Patel moved the Circuit Court for relief under Wis. Stat. § 823.02 to prosecute their public nuisance claims as relators on behalf of the entire State of Wisconsin. (App. 48–52) In larger part, the premise of the underlying motion was the nature of the allged harms—*statewide* in their reach:

> Accepting the allegations here as true, Defendants hijacked a statewide election for Supreme Court justice, distorting a civic exercise in democratic self-government into a self-serving carnival, complete with cash-for-signatures giveaways and a lottery promising the chance to win a million dollars for casting a vote for the preferred candidate of the man bankrolling the festivities. But Wisconsin does not—and cannot—accommodate such noxious conduct: ours is a state of laws, and Defendants broke them. *See, e.g.*, Wis. Stat. §§ 12.11, 806.04, 945.02; *Thomas ex rel. Gramling v. Mallett*, 2005 WI 129, ¶168, 285 Wis. 2d

> 236, 701 N.W.2d 523 (articulating the standard supporting a claim for civil conspiracy).

(App. 50) Importantly, the Circuit Court granted the order, authorizing Gagliardi and Patel to prosecute their Wis. Stat § 823.02 public nuisance claim on behalf of the entire State. (App. 53)

D. Despite recognizing Dane County as a proper venue, the Circuit Court transferred the case to Brown County without proof or a hearing.

In lieu of answering the complaint, Defendants filed a series of motions, seeking recusal, dismissal, and, as relevant here, transfer of venue. (App. 54) In their motion, Defendants argued that venue was improper in Dane County and, alternatively, that the court should order a discretionary transfer to Brown County. (App. 55–66) Defendants did not file any declarations or other factual material with and in support of their venue motion.[2]

The Circuit Court issued an order setting deadlines for briefing on the venue motion and noted that the motion "will be decided upon the Record and Briefs filed, without oral argument, unless a hearing is specifically requested by one of the parties." (App. 167) Despite that clear notice and the statutory language, Defendants still made no request or effort to submit any proof.

Plaintiffs filed an opposition to the venue motion. (App. 168–80) Plaintiffs argued that the motion should be denied because, among other reasons, Defendants moved for transfer "without supporting evidence."

[2] While the transmittal letter of opposing counsel refers to a "Pretrial Motions' Appendix" (App. 54), the document itself bears the more specific title "Appendix for Pretrial Motions 3–5," which omits the venue motion (App. 67). Regardless of how Defendants denominated their appendix, no included materials apply to the venue motion. (App. 67–166)

(App. 169; *accord* App. 170 ("Defendants have offered no proof")) Plaintiffs also argued that venue was proper in Dane County because Defendants directed their scheme across the state of Wisconsin, including in Dane County, and because Musk does substantial business in Dane County. (App. 170–77) Plaintiffs likewise opposed discretionary transfer, pointing to WDC's headquarters and residence in Dane County, Musk's counsel's residence in Dane County, and the likelihood that witnesses reside in Dane County. (App. 177–79) Plaintiffs further opposed discretionary transfer on the ground that Defendants provided "no evidence" that venue in Dane County would be inconvenient for any witness. (App. 179)

No party requested a hearing on Defendants' motion to transfer, and the Circuit Court did not hold one. More than three months after briefing concluded, the Circuit Court issued a decision granting the venue motion and instructing Musk's counsel to propose an order to that effect. (App. 256–57) The following day, the Circuit Court received and signed Musk's proposed order. (App. 258, 259)

In its decision, the Circuit Court held that "Plaintiffs chose a proper venue in Dane County." (App. 255) The court found that "[t]he Plaintiffs correctly argue that it is reasonable to believe the petition was advertised in, and likely signed by residents of Dane County and payments made to those residents." (App. 255) And the court recognized that a plaintiff's choice of forum "is entitled to some deference." (App. 255) The court nevertheless granted transfer to Brown County on the grounds that the interests of justice and convenience of the witnesses favored transfer. (App. 255–56) The court based its analysis on how "the average observer" might view the case's forum, even though no such

"average observer" test is found in the venue statute. (App. 256) And it speculated on other issues, such as that "[m]uch or all of the case may well be decided on motions." (App. 256) The court did not cite any record evidence submitted by Defendants to support these points—because there was none.

RELEVANT LEGAL STANDARDS

A. Supervisory Writs

This Court has "supervisory authority over all actions and proceedings in the courts in the district." Wis. Const. art. VII, § 5(3); *accord* Wis. Stat. § 752.02.[3] It exercises that authority, in part, pursuant to Wis. Stat. § 809.51, which governs applications for and grants of supervisory writs. A "supervisory writ serves a narrow function: to provide for the direct control of lower courts, judges, and other judicial officers who fail to fulfill non-discretionary duties, causing harm that cannot be remedied through the appellate process." *State ex rel. DNR v. Wis. Ct. of Appeals, Dist. IV*, 2018 WI 25, ¶8, 380 Wis. 2d 354, 909 Wis. 2d 114 (quoted source omitted).

A supervisory writ is appropriate where, as here, "(1) a circuit court had a plain duty and either acted or intends to act in violation of that duty; (2) 'an appeal is an inadequate remedy;' (3) 'grave hardship or irreparable harm will result;' and (4) the party requested relief 'promptly and speedily.'" *State ex rel. Kormanik v. Brash*, 2022 WI 67, ¶30, 404 Wis. 2d 568, 980 N.W.2d 948 (quoting *DNR*, 380 Wis. 2d 354, ¶9). The

[3] The express constitutional limitation to "courts in the district" means that appellate venue for this writ petition necessarily lies in District IV, even once the case has been transferred to the Circuit Court for Brown County. This Court has recognized that only District IV "has supervisory writ authority over the Dane County Circuit Court." *WEC v. Vos*, No. 2022AP104, Order at 5–6 (Wis. Ct. App. Feb. 11, 2022). (App. 270–71)

decision whether to issue a supervisory writ "is controlled by equitable principles" and the Court "can consider the rights of the public and third parties" in its analysis. *State ex rel. Godfrey & Kahn, S.C. v. Cir. Ct. for Milwaukee Cnty.*, 2012 WI App 120, ¶49, 344 Wis. 2d 610, 823 N.W.2d 816 (quoted source omitted).

B. Venue

Outside of exceptions not relevant here, venue for a civil action initiated in circuit court is proper:

> (a) In the county where the claim arose;
> (b) In the county where the real or tangible personal property, or some part thereof, which is the subject of the claim, is situated;
> (c) In the county where a defendant resides or does substantial business; or
> (d) If the provisions under par. (a) to (c) do not apply, then venue shall be in any county designated by the plaintiff.

Wis. Stat. § 801.50(2).

Challenges to improper venue are governed by Wis. Stat. § 801.51. In addition, courts are expressly authorized, whether acting *sua sponte* or at the urging of one or more parties, to "change the venue to any county in the interest of justice or for the convenience of the parties or witnesses." Wis. Stat. § 801.52.

A request to change venue, whether brought under § 801.51 or § 801.52, "shall be determined on the basis of proofs submitted by the parties unless the court orders a hearing or oral argument." Wis. Stat. § 801.53. Failure to support a venue motion with proof is fatal to that motion. *Stelling by Ryberg*, 406 Wis. 2d 197, ¶56.

ARGUMENT

Every factor required for a supervisory writ is satisfied here: (1) the Circuit Court did not perform its plain duty to adjudicate Defendants'

venue motion in accordance with Wisconsin law; (2) an appeal is an inadequate remedy in this case; (3) Plaintiffs, and the public, will suffer irreparable harm absent a writ; and (4) Plaintiffs filed this Petition promptly. *Kormanik*, 404 Wis. 2d 568, ¶17.

I. The Circuit Court violated its plain duty by granting the venue motion without either evidentiary submissions or a hearing.

Defendants filed the motion to change venue, and of course, the movant bears the burden of proof. *See Stelling by Ryberg*, 406 Wis. 2d 197, ¶54. Under Wisconsin law, evidentiary proof is required in support of a motion to change venue. Wis. Stat. § 801.53. Yet Defendants did not submit any such proof. In the absence of a sufficient evidentiary record for adjudicating the motion, a court can hold a hearing. *Id.* But Defendants did not request a hearing, and the Circuit Court did not hold one. This Court's decision in *Stelling by Ryberg v. Middlesex Insurance Company*, establishes that, in the absence of proof, either submitted with the motion or adduced at a hearing, a motion for change of venue is properly denied. 406 Wis. 2d 197, ¶¶56, 58.

Furthermore, § 801.53's use of "shall" underscores that the Circuit Court had a plain duty to faithfully apply the venue statute and deny Defendants' motion in the absence of proof or a hearing. This is true for two distinct reasons.

First, "the word 'shall' creates a presumption that the statute is mandatory," which is "strengthened where the legislature uses the word 'may' in the same or related sections, for such use demonstrates that 'the legislature was aware of the different denotations and intended the words to have their precise meanings.'" *In Int. of F.T.*, 150 Wis. 2d 216, 221–22, 441 N.W.2d 322 (Ct. App. 1989) (quoting *Karow v. Milwaukee*

Cnty. Civ. Serv. Comm'n, 82 Wis. 2d 565, 570–71, 263 N.W.2d 214 (1978)). The Legislature used "may" in § 801.52 to give courts discretion over certain venue changes. But, at the same time it used "shall" in § 801.53 to limit how that discretion may be exercised: motions for change of venue "*shall* shall be determined on the basis of proofs." Wis. Stat. § 801.53 (emphasis added). So, for the circumstances in which a circuit court has power to act—as relevant here with respect to venue changes—"the legislature has circumscribed the authority of the circuit court, which may not arrogate to itself any additional powers." *Kormanik*, 404 Wis. 2d 568, ¶33.

Second, the Supreme Court has made clear that ensuring proper venue "is a 'plain duty' for purposes of the supervisory writ requirements." *Id.*, ¶19. It so held because the appellate venue statute, like § 801.53, "utilizes the mandatory word 'shall'" such that "the obligation to venue the [case] in the correct [court] is clear, unequivocal, and mandatory," which renders it "a 'plain duty' within the meaning of our supervisory writ jurisprudence." *Id.* (quoting *DNR*, 380 Wis. 2d 354, ¶13).

The Circuit Court breached this plain and mandatory duty. While the statute requires the court to base its opinion on either "proofs," or a hearing, it did neither.

As a result, the Circuit Court's interests-of-justice analysis was not grounded in any record evidence submitted by Defendants. Instead, the Court largely based its conclusion that the interests of justice warranted transfer on whether "the average observer" would understand why the case was in Dane County. (App. 256) No legal authority supports that

framing of the issue, and no record evidence supports the Court's analysis of it.

The same is true for the Circuit Court's analysis of the convenience to witnesses and parties. Although Defendants bear the burden, they did not submit any evidence regarding the convenience of the parties or the witnesses. In the absence of such evidence, the Circuit Court simply speculated about the convenience of the parties and witnesses, in contravention of the statute's mandate that the court decide the motion based on "proofs." Wis. Stat. § 801.53. The Circuit Court theorized that the "[t]he people of Brown County were most directly impacted by the events at the heart of this case." (App. 256) But this contradicts both the complaint's allegations and the Circuit Court's own recognition that "the nuisance [caused by Defendants' conduct] occurred throughout Wisconsin." (App. 255) It also contradicts the nature of the public nuisance claim, which Plaintiffs are pursuing as relators on behalf of the entire state. (App. 43–45, 53)

The statute and case law are clear: Defendants bear the burden to establish inconvenience and that the interests of justice favor transfer with solid evidence. In the absence of any proper evidentiary effort to carry that burden, the Circuit Court should have denied the motion, particularly since it recognized that Dane County was a proper venue, and Plaintiffs' chosen one, that WDC is headquartered there, and that WDC's co-plaintiffs act as relators for the State because the harm they seek to remedy was statewide. By granting the motion and transferring venue to a new county without evidentiary support, the Circuit Court breached its plain duty.

II. An appeal is an inadequate remedy.

An appeal is an inadequate remedy for purposes of the four-factor analysis when it would come "too late for effective redress and the damage … is not reparable or compensable." *State ex rel. CityDeck Landing LLC. v. Cir. Ct. for Brown Cnty.*, 2019 WI 15, ¶39, 385 Wis. 2d 516, 922 N.W.2d 832 (quoting *DNR*, 380 Wis. 2d 354, ¶41). As the Supreme Court has repeatedly recognized, an appeal is not an adequate remedy in these circumstances. *See Kormanik*, 404 Wis. 2d 568, ¶25 (citing *DNR*, 380 Wis. 2d 354, ¶45).

While disputes over trial court venue can be resolved in two ways—an immediate appeal by permission under Wis. Stat. § 808.03(2), or at the end of the case under Wis. Stat. § 808.03(1)—neither avenue provides an adequate remedy in this case.

A venue dispute can be addressed through immediate appeal of the trial court's venue order by permission. *See* Wis. Stat. 808.03(2); *Stelling by Ryberg*, 406 Wis. 2d 197, ¶1. But briefing, argument, and a decision on an appeal will all take time. Particularly because another Wisconsin Supreme Court election is just over two months away, an appeal in these circumstances would be an inadequate remedy for Plaintiffs.

Further, such an appeal is wholly at the Court of Appeals' unreviewable discretion. *See State v. Jendusa*, 2021 WI 24, ¶18, 396 Wis. 2d 34, 955 N.W.2d 777. As the Supreme Court has recognized, "obtaining review of [venue] questions via" request for discretionary appeal "'would depend on a serendipitous confluence between (1) the venue error, and (2) a "plus" factor.'" *Kormanik*, 404 Wis. 2d 568, ¶25 (quoting *DNR*, 380 Wis. 2d 354, ¶43). In other words, an error of law alone is typically insufficient to persuade an appellate court to grant a permissive appeal.

The reality that a petition for permissive appeal "would require a 'plus' factor just to bring the venue issue before [the appellate court], it is a mechanism too chancy to constitute an adequate remedy." *DNR*, 380 Wis. 2d 354, ¶44. Appellate review of lawful venue "should not depend on the existence of an additional 'plus' factor that would support a petition for review. *Id*., ¶45.

Alternatively, if the issue is not addressed until an appeal as of right, after final judgment, that is too late for adjudication to occur in the legally correct venue. "Sometimes appellate review in the normal course of events is inadequate for the simple fact that it comes after the proceeding has already occurred." *Id*., ¶41. This problem is not limited only to appellate venue, as the Supreme Court has "recognized that trial court venue can present an issue requiring review before entry of final judgment," and "once interlocutory appeals of venue orders were no longer available as a matter of course, we concluded that mandamus could be a proper pathway for addressing improper venue." *Id*. ¶42 (citing *State ex rel. Spence v. Dick*, 103 Wis. 407, 409, 79 N.W. 421 (1899)).

Without a supervisory writ, Plaintiffs' venue choice will be voided, without the proof or process guaranteed by Wisconsin law, and appellate review, if available at all, will be "inadequate for the simple fact that it comes after the proceeding has already occurred." *DNR*, 380 Wis. 2d 354, ¶41. The binding rationale of *DNR* "clearly applies" here, just as it did "to Kormanik's writ petition." *Kormanik*, 404 Wis. 2d 568, ¶25.

III. Wisconsin law recognizes being forced to litigate in an improper venue is an irreparable harm.

Wisconsin law provides a plaintiff with a range of venue options in which to pursue their case, and a statutory right, absent particular

circumstances not present here, to proceed in the venue of their choice. Here, the Circuit Court held that Dane County was a proper venue for this case. Yet it nevertheless transferred the case to Brown County without an evidentiary basis, meaning that Brown County is an incorrect venue for this case. And Wisconsin law is clear that forcing a party to proceed in an incorrect venue constitutes irreparable harm.

Wisconsin law provides that "a plaintiff may choose among whichever of the [civil venue] options in § 801.50(2)(a)–(c) apply and, if none apply, then proceed to select a county under (d)." *Stelling by Ryberg*, 406 Wis. 2d 197, ¶26. That is, like an appellant who brings an appeal that meets the requirements of Wis. Stat. § 752.21(2), a civil plaintiff has "a statutorily granted right" to litigate in a lawfully chosen venue. *Kormanik*, 404 Wis. 2d 568, ¶51. Not only is it "nearly tautological to observe that losing a statutorily-granted right is a harm," but "[l]osing the right with no means to recover it makes the harm irreparable." *Id.* (quoting *DNR*, 380 Wis. 2d 354, ¶47). Even if an appellate court were eventually to confirm Plaintiffs' venue choice during an appeal as of right, that would not allow recovery of the right to choose venue in this case. *See* Wis. Stat. § 801.50(1) ("A defect in venue shall not affect the validity of any order or judgment."); *In re Christian J.W.*, 2011 WI App 121, ¶45, 337 Wis. 2d 91, 803 N.W.2d 869 ("Because a defect in venue is not a jurisdictional defect, a defect in venue does not affect the validity of any order or judgment.").[4] (App. 275)

The harm of being required to litigate in the incorrect venue, after having properly filed suit in a lawful venue and having had the Circuit

[4] Unpublished, authored opinion cited for persuasive value and included in the Appendix as required by Wis. Stat. § 809.23(3).

Court violate a plain duty in transferring that venue, is irreparable harm to Plaintiffs. The Supreme Court's issuance of supervisory writs to correct venue errors in *DNR* and *Kormanik* recognize this irreparable harm. So, too, do older cases, preceding our current venue statutes. For example, in *State ex rel. Spence v. Dick*, the Supreme Court indicated that the denial of an "absolute" right to change trial venue constituted "substantial damage" that rendered mandamus relief appropriate. 103 Wis. at 409. This is the same situation in reverse: Plaintiffs had an "absolute" right to litigate in their lawful, chosen venue absent an evidentiary basis for a motion to change venue; the Circuit Court's order granting Defendants' motion to change venue in the absence of any evidentiary basis constitutes "substantial damage" and renders a supervisory writ appropriate.

IV. This Petition was promptly filed.

The fourth and final factor for this Court to consider is whether Plaintiffs "requested relief promptly and speedily." *Kormanik*, 404 Wis. 2d 568, ¶30. In *Kormanik*, three weeks elapsed "between the issuance of unlawful stay order and CityDeck's writ filing," but the Court held that "[t]his timeline satisfies the 'prompt and speedy' criterion." *Id.*, ¶42. Here, the Circuit Court issued its ruling on January 20 and entered its order on January 21. This Petition is being filed within two weeks of the order. There is no question that Plaintiffs have acted with sufficient alacrity.

V. The substantial public interest in expeditious resolution of this case also favors issuing the writ.

When deciding whether to issue a supervisory writ, this Court may "consider the rights of the public and third parties." *DNR*, 380 Wis. 2d 354, ¶9 (quoted source omitted); *Godfrey & Kahn, S.C.*, 344 Wis. 2d 610,

¶49 (quoted source omitted). As described above, Plaintiffs—two of whom act as relators—have a strong interest in seeing this case adjudicated quickly in the proper venue. And the interests of the public in resolving this dispute expeditiously are just as strong. The public has a substantial interest in having these claims litigated and decided so that Defendants—and others—cannot interfere in Wisconson's numerous upcoming elections.

CONCLUSION

Because Plaintiffs meet all four requirements, this Court should issue a supervisory writ requiring the Circuit Court of Dane County to withdraw its orders granting the motion to change venue and transferring this case to the Brown County Circuit Court.

DATED: February 4, 2026

Respectfully submitted,

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CERTIFICATION OF COMPLIANCE WITH WIS. STAT. § 809.19(8g)(a)

I hereby certify that this brief conforms to the rules contained in s. 809.19(8)(b), (bm), and (c) for a brief. The length of this brief is 4,627 words.

DATED: February 4, 2026

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CERTIFICATE OF FILING/SERVICE

On this 4th day of February, 2026, I caused the foregoing Emergency Petition for Supervisory Writ and supporting Appendix to be filed with the Court using the Wisconsin Court Electronic Filing system for the Court of Appeals. I further certify that service is being effectuated through traditional means.

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